

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER MCCARTNEY

Date: 5/1/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
7	PP Tango CA LLC vs. Vasconcelos 30-2024-01443104	The Court has read and considered the Defendant's Motion to Set Aside Default Judgment (ROA 36) and Plaintiff's Opposition (ROA 44). The Court takes Judicial Notice of the Declaration in Support of Default Judgment by Court CCP 585(d) (ROA 26), Writ of Possession Unsatisfied (ROA 19), Proof of Service – Substitute (ROA 8) and Complaint (ROA 2). California Evidence Code Section 647 creates a rebuttable presumption that a registered process server's proof of service is true and that service was legally proper. This is a presumption affecting the burden of producing evidence, which places the burden on the challenging party to introduce contrary evidence to overcome it. ROA 26 attaches the Lease agreement between the Plaintiff and Defendant. Section 43 of the lease agreement (page 23) states, "Any notice permitted or required hereunder, and any notice to pay rent or quit or similar notice, shall be deemed personally delivered to Tenant on the date the notice was personally delivered to any employee of Tenant at the Premises." ROA 8 is a proof of service signed under penalty of perjury by a registered process server, Erik Gabriel Reyes #6438, that he served the summons and complaint on "Employee in Charge" Ashley with a description on 12/10/2024 at 1:02 PM. Defendant's Exhibit C references an email on 12/10/2024 at 1:29 PM in which Nicole from the Property Management Company states they are starting the eviction process and that they called and spoke with Ashley. Ashley is referenced in multiple emails contained in Defendant's Exhibit C.

		The Court does not find it credible that the Defendant did not know about the lawsuit at all or that the Defendant never received notice of it. The Court DENIES the Defendant's Motion to Set Aside Default Judgment. The Court orders the Plaintiff to provide notice of the Court's ruling.
8	Seabreeze LP. vs. Viguri 30-2022-01277099	The Court has read and considered the Defendant's Motion to Vacate Default Judgment (ROA 30), Request to Restore Motion to Vacate to Calendar (ROA 46), and Request to Restore Motion to Vacate Default Judgment (ROA 54) and Notice of Motion to Vacate Default Judgment (ROA 63). The Court takes Judicial Notice of the Writ of Possession Returned-Wholly Satisfied (ROA 22), Judgment Unlawful Detainer (ROA 15), Notice that you have been sued OC (ROA 7), Proof of Service of Summons (ROA 12), 1/8/2026 Minute Order, Writ of Possession of Real Property (ROA 17). California Evidence Code Section 647 creates a rebuttable presumption that a registered process server's proof of service is true and that service was legally proper. This is a presumption affecting the burden of producing evidence, which places the burden on the challenging party to introduce contrary evidence to overcome it. Proof of Service indicates personal service of the Defendant, and the only evidence Defendant provides to dispute services is her own statements that she did not receive notice of the proceedings. The Court sent notice of the lawsuit via ROA 7, and at a minimum, when the Orange County Sheriff's Department posted the Notice to Vacate the Premises on 11/3/2022, the Defendant knew of the lawsuit. According to ROA 22, the Plaintiff was restored possession of the premises on 12/2/2022, yet the Defendant did not file anything with the Court before the original motion to vacate on 12/3/2025, 3 years after the restoration of possession to the Plaintiff. Defendant points to the Plaintiff receiving rental assistance from Housing Is Key for \$32,595, but the Defendant's own evidence shows that the rental assistance was for the period of December 2020 to March 2022. The Complaint and Notice to Pay or Quit, and basis for the lawsuit, is the lack of payment for rent for April 2022 and May 2022. Furthermore, the Verification by Landlord Regarding Rental Assistance (ROA 18) is asking the Landlord if they received or have received notice of a pending application for rental assistance for the time period of non-payment of rent listed in the complaint, which here would have been April and May of 2022 or after the filing of the lawsuit. The Court DENIES the Defendant's Motion to Vacate Default Judgment.
9	McFadden Associates LLC vs. Chapa 30-2025-01512881	On 4/17/2026, the Court ruled on this matter. The hearing is taken off calendar.
11	Christopher Paul Teague as Trustee of the Teague Family	The Court has read and considered the Defendant's Motion to Vacate Default Judgment (ROA 40) and the Plaintiff's Opposition (ROA 47).

	Trust dated August 5, 2010 as restated on August 17, 2018 vs. Rutledge 30-2026-01542413	The Defendant acknowledges that she was properly served and knew about the lawsuit in this matter. The Summons states, “NOTICE! You have been sued. The court may decide against you without your being heard unless you respond within 10 days. You have 10 DAYS, not counting Saturdays and Sundays and other judicial holidays, after this summons and legal papers are served on you to file a written response at this court and have a copy served on the plaintiff.” A party appearing in propria persona does not provide a basis for special treatment under the law; “such a party is to be treated like any other party and is entitled to the same but no greater consideration than other litigants and attorneys.” (<i>Barton v. New United Motor Manufacturing, Inc.</i> (1996) 43 Cal.App. 4th 1200, 1210.) Additionally, the Court of Appeal held the in propria persona litigant is held to the same restrictive rules of procedure as an attorney. (<i>Kabbe v. Miller</i> (1990) 226 Cal.App. 3d 93, 98.) Ignorance of the law or negligence in acting does not qualify as “excusable neglect” under California Code of Civil Procedure § 473(b). The Court DENIES the Defendant’s Motion to Set Aside Default Judgment. The Plaintiff is ordered to provide notice of the Court’s ruling.
12	Anchorpoint 1018, LLC vs. Iambellfit MMA, LLC 30-2026-01546979	The Court has read and considered the Defendant Tiffany Bell’s Motion to Set Aside Judgment (ROA 32). The Court sets aside the Stipulation for Entry of Judgment signed on 3/23/2026. The Writ of Possession is QUASHED. The Court Clerk is to notify the Orange County Sheriff’s Department forthwith that the Writ of Possession is QUASHED and the lockout is CANCELLED. The Default Judgment entered by the Clerk’s Office as to IAMBELLFIT MMA, LLC on 3/5/2026 remains in place. Pursuant to <i>Merco Constr. Engineers, Inc. v. Municipal Court</i> (1978) 21 Cal.3d 724 and <i>Ziegler v. Nickel</i> (1998) 64 Cal.App. 4th 545, 547-549, the Court finds that Limited Liability Companies, Trusts, and Corporations need to be represented by an Attorney and cannot proceed in pro per. Ms. Bell may not as an individual represent IAMBELLFIT MMA, LLC. The Court sets the matter for a Court Trial on May 7, 2026 at 8:30 AM in Department C61.
13	Irvine Park West Apartments LLC vs. Avila 30-2026-01551695	On 4/21/2026, the Court ruled on this motion. Defendant, Fatima Gonzalez, is ordered to the Court Clerk’s Office to pay the first appearance and motion fees. The hearing is off calendar as the motion has already been ruled on by the Court.
14	9 MacArthur Place Property, LLC vs. Poursarvitehrani	The Court has read and considered the Plaintiff’s Motions to Deem Request for Admissions, Set One, Admitted (ROA 18).

	30-2026-01553263	IT IS ORDERED that the Plaintiff's Motion to Deem Admitted the Facts Set Forth In Plaintiff's First Set of Request for Admissions be and hereby is granted, and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admissions, propounded by Plaintiff and served on Defendant, be deemed admitted. The Court orders the Defendant, Amin Poursarvitehrani, forthwith to pay a sanction in the amount of \$997.50 to the Plaintiff's counsel. This sum shall be made payable to "Kimball, Tirey, & St. John, LLP" within 5 business days, and shall be delivered to 2040 Main Street, Suite 500, Irvine, CA 92614. The Plaintiff is ordered to provide mail and electronic notice of this Court's order.
15	Terry F. Tuchman, Trustee Of The Tuchman Family Trust vs. Kesson 30-2026-01555483	The Court has read and considered the Defendant's Motion for Preliminary Injunction (ROA 19). The Defendants fail to show that injunctive relief is required in this matter. Defendants cite to an incident that occurred in October 2024, where there was a valve failure resulting in a "water or steam leak." Defendants do not report any current actions by the landlord that would constitute a violation of California Civil Code § 789.3. The Court will admonish the Plaintiff that there should be no violations of California Civil Code § 789.3 and Penal Code § 418, which makes it illegal to use self-help methods to terminate a tenancy. The Court DENIES the Motion for Preliminary Injunction. The Court Clerk is to provide notice of the Court's ruling.
17	Rosenbledt vs. Andalabian 30-2025-01503859	The Court has read and considered the Plaintiff's Motion for Summary Judgment, and its supporting documents/declarations (ROA 56, 52, 43, 41, 39, 35, 45, 37, and 31) and the Defendant's Opposition (ROA 64). The Court takes Judicial Notice of the Plaintiff's Exhibits 1-27. The Court takes Judicial Notice of the Defendant's Exhibits A-E. The Court denies the Defendant's request for Judicial Notice of Exhibit F, it is not the proper subject for judicial notice. The Court finds that triable issues of material fact exist regarding whether the property was sold in accordance with California Civil Code §2924 and if the title was "duly perfected" pursuant to California Code of Civil Procedure § 1161a(b)(3). At the time of the foreclosure sale, there were bankruptcy proceedings, which, according to the Plaintiff, were not disclosed, resulting in issues in recording the title to the property. Additionally, Defendant provides a file-stamped Court Order regarding directions for sale of the property and Affidavit of Change of Trustee dates 8/8/2023 to Greg M. Tonkinson. The Court DENIES the Plaintiff's Motion for Summary Judgment.

		The Court sets the matter for a Pre-trial and Jury Trial on 5/18/2026 at 8:30 AM in C61. The Court Clerk will provide counsel with the Court's standing orders for Pre-Trial and Jury Trial.
18	The Irvine Company, LLC vs. Vakilian 30-2026-01545823	The Court has read and considered the Plaintiff's Motion for Summary Judgment (ROA 39). The Court GRANTS the Plaintiff's Motion for Summary Judgment. The Court finds that no triable issues exist as the answers which were deemed admitted terminate any possible affirmative defense raised in the Defendant's answer and admit to the Plaintiff meeting their burden under the law as to the notice requirements for the complaint. The Court awards possession of the property located at 758 Estancia, Irvine, CA 92602, County of Orange, to the Plaintiff. This judgment applies to all occupants of the premises, including tenants, subtenants, if any, and named claimants, if any. This includes forfeiture of the lease. A writ of possession shall issue forthwith. The Court awards a monetary judgment as follows: \$7,590 in past due rent \$10,499.50 in holdover damages \$2,000 in attorneys' fees and costs For a total monetary judgment of \$12,718.64 Plaintiff is ordered to provide notice and file a judgment with the Court reflecting the Court's orders no later than 5/5/2026 at 4 PM.
19	Lu vs. Hatoka 30-2026-01548429	Continuance to May 6, 2026, at 8:30 AM in C61
21	Yan vs. Wang 30-2026-01561001	The Court has read and considered the Defendants' Demurrer (ROA 16) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. In ruling on a demurrer, the Court considers only whether the allegations on the face of the petition are sufficient to state a claim for relief, not whether the claim will ultimately prevail on the merits. The Court orders the Defendant to file an answer within 5 business days. Plaintiff is to provide notice of the Court's ruling.
22	Shen vs. Koch 30-2026-01559579	The Court has read and considered the Defendants' Demurrer (ROA 12) and the Complaint (ROA 2). The Court SUSTAINS the Demurrer without leave to amend. Plaintiff failed to serve a notice to pay rent or quit in compliance with California Civil Code of Procedure section 1161(2). The Plaintiff's 3-day Notice fails to state in writing the name, address, and telephone number to which to transmit payment. As a notice to quit cannot be amended and strict compliance with CCP section 1161(2) is required under the law, the Court dismisses the complaint.

		The Court Clerk is to provide notice of the Court's ruling.
23	Shapiro vs. Brennan 30-2026-01549769	The Court has read and considered the Defendants' Demurrer (ROA 24), Plaintiff's Opposition (ROA 29) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. In ruling on a demurrer, the Court considers only whether the allegations on the face of the petition are sufficient to state a claim for relief, not whether the claim will ultimately prevail on the merits. The Court orders the Defendant to file an answer within 5 business days. Plaintiff is to provide notice of the Court's ruling.
24	Dokovic vs. Lopez Ortiz 30-2026-01553401	The Court has read and considered the Defendants' Demurrer (ROA 73) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. In ruling on a demurrer, the Court considers only whether the allegations on the face of the petition are sufficient to state a claim for relief, not whether the claim will ultimately prevail on the merits. The Court orders the Defendants to file an answer within 5 business days. Plaintiff is to provide notice of the Court's ruling.
26	Ceda LLC vs. Gutierrez 30-2026-01560159	The Court has read and considered the Defendants' Demurrer (ROA 10), Plaintiff's Opposition (ROA 17), and Complaint (ROA 2). The Court SUSTAINS the Demurrer with leave for the Plaintiff to amend the complaint. An essential element of the complaint is to state whether the Tenant Protections Act of 2019 is applicable and, if so, whether the complaint is based on an at-fault just-cause eviction. When the Complaint fails to address the TPA the complaint is uncertain and ambiguous as to the legal basis for the eviction. The Court orders that the Plaintiff has 5 business days to amend the complaint. The Court orders the Plaintiff to provide notice of the Court's ruling.